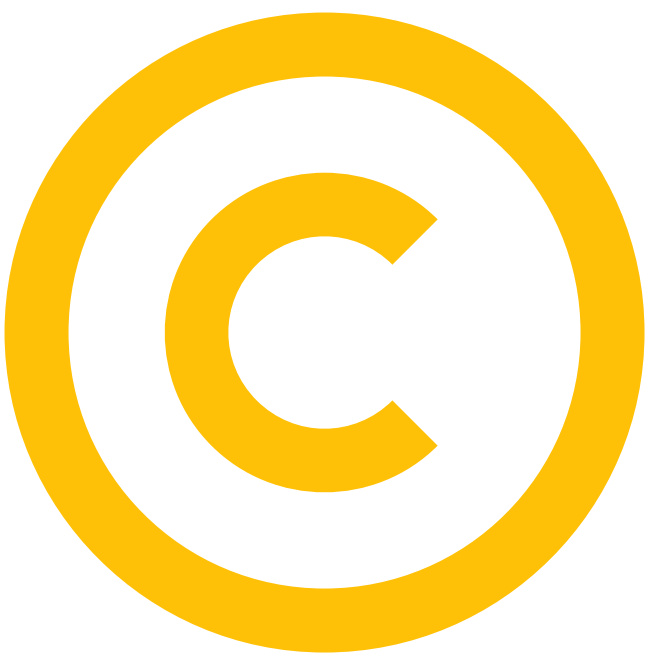
Copyright Issues and Ownership

What is Copyright?

Copyright "is a type of intellectual property that protects original works of authorship as soon as an author fixes the work in a tangible form of expression." This means that copyright is protecting creations like paintings, video, writing etc that are originally produced by authors. Copyright, however, does not always go directly to the person who made the product. For example, if an employer tells an employee to create a piece of art, then the copyright ownership is given to the employer, not the employee. In addition, everyone is a copyright user. Every book, TV show, news paper article, and painting that we see is protected by copyright. However, to use copyrighted works, you must: receive permission, buy licensing or buy the work all together etc.



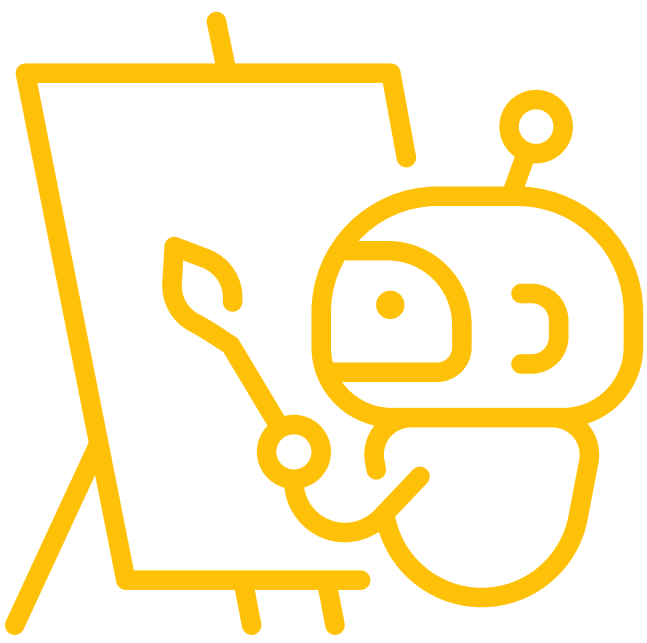
Various issues have arisen due to AI in copyright, ownership and authorship:

- Authorship: Is AI generated artwork a product of human creativity and resourcefulness or is it a result of a sophisticated and creative AI? Where should authorship be attributed to?
- Is AI unlawfully using the creations of artists for training?
- Is the product of a generative AI that uses human artists' work for training committing a copyright violation or plagiarism by creating such pieces of art?

There are many other issues surrounding AI, but there three are the primary issues covered in this infographic. These issues are also deemed the most relevant.

Authorship and AI

It has been concluded by the US court that any artwork or writing created using AI is not eligible for copyright protection unless a human creator has made a significant contribution to the work through editing, adjusting or collaborating. This also highlights the larger principle at hand when it comes to copyright. Copyright does not protect the idea itself or works generated autonomously by AI, but protects the expression of ideas made by humans. Simply put, it means that simply a human having the idea and ordering the robot to create it is not enough, there must be human involvement in the creation of the product itself as well.





This means that any sort of AI generated content that does not have significant human input is not owned by anyone. The AI generated content is immediately put into the public domain, and is not protected regardless of how much copying, plagiarism etc happens.

Copyright Issues and Ownership

Andersen v. Stability AI



Andersen v. Stability AI is a lawsuit happening currently in the United States between various visual artists, led by Sarah Andersen, and a generative AI company, Stability AI. Andersen claimed that Stability AI had unlawfully scraped the copyright protected works of various visual artists to train the AI model. She stated that this was a violation of copyright. Andersen v. Stability AI has been an ongoing lawsuit since 2023, without any conclusion being drawn so far.

The result of Andersen v. Stability AI will govern the approach to copyright with AI in the future. If it is concluded that Stability AI's use of copyrighted material is lawful, then artists will not recieve credit for their work being used, resulting in the AI generative business becoming less reserved with data harvesting. On the other hand, if it is concluded that Stability AI's actions are unlawful, the business models of various AI companies will need to change. Companies will now have to receive permission or buy licensing from artists in order to train their AI systems. This may staunch innovation in the field due to limited access to data.



Getty Images v. Stability AI



Getty Images is a well known and widely used data base of stock photos protected by copyright. Getty Images claimed that Stability AI had unlawfully plagiarised copyright protected images. Many images created by Stability AI had resembled the photos that Getty Images had in their data base, and some generated images had a crude imitation of Getty Images' water mark.

The lawsuit came to a close in 2025, with the British court ruling that Stability AI's use of the copyrighted works were legal. The British Court stated that Stability AI was not using the images for reproduction or copying, and that the images generated by Stability AI was mathematically learning from the images, not storing them. However, Getty Images was vaguely successful in trademark infringement claim, as the images did contain watermarks that held similarities to Getty Images' watermark.

